Constitutional Law of India: Fundamental Rights & Judicial Precedents

Uploaded By: Pooja Trivedi (LL.B 3rd Semester) | Official Course Curriculum | Peer Verified & 4.9

Unit 1: Part III Fundamental Rights (Articles 12 to 35)

• Article 12: Definition of "State" — Government, Parliament, Local Authorities & State Instrumentalities (Ajay Hasia test).

• Article 14: Equality before Law & Equal Protection of Laws. Doctrine of Non-Arbitrariness (E.P. Royappa case).

• Article 19: Six Basic Freedoms (Speech, Assembly, Association, Movement, Residence, Profession) subject to reasonable restrictions (Art 19(2)).

• Article 21: Right to Life and Personal Liberty. Procedure Established by Law vs Due Process of Law (Maneka Gandhi v. UOI).

Unit 2: Constitutional Remedies & Writ Jurisdiction (Article 32 & 226)

• Habeas Corpus: "To have the body" — remedy against unlawful detention.

• Mandamus: "We command" — directing public authority to perform statutory duty.

• Prohibition & Certiorari: Quashing orders passed in excess of jurisdiction.

• Quo Warranto: Challenging title of person to public office.

• Basic Structure Doctrine: Kesavananda Bharati v. State of Kerala (1973) — Parliament cannot amend the basic structure.